

April 6, 2026
Dept. 9
Probate Tentative Rulings

13.	PP20110069	AVIS JEWEL O'ROURKE SPECIAL NEEDS TRUST
Accounting Hearing		

The conservatee of this Special Needs trust died on July 15, 2023. The trustee, her sister, has filed the Ninth and Tenth Accounts for the Trust to cover the period of April 22, 2023, between the closing of the Eighth account and October 21, 2025, the present in order to settle accounts and close the Trust. No expenditures occurred or are anticipated following October 21, 2025, other than those that are detailed in the Petition.

- There is a creditor claim from the California Department of Health Care Services (“DHCS”) in the amount of \$1,431,269.35. Petition, Exhibit A.
- Property on hand is valued at \$120,418.62 plus accrued interest.
- Petitioner requests authority to retain \$5,000 to cover any additional expenses that may arise, in particular the possibility of capital gains taxes on 2024 tax returns. This should be resolved by 2028, and any remaining funds would be remitted to DHCS.
- Petitioner requests authority to pay herself \$2,448 in trustee fees.
- Petitioner requests approval of the payment of \$8,430.75 in attorneys’ fees for services provided in the Tenth accounting period.
- Petitioner requests authority to pay an additional \$6,347.80 in attorneys’ fees for services provided in the Tenth accounting period.
- Petitioner requests authority to pay all remaining assets to DHCS, and
- Petitioner requests authority to close the Trust and be relieved as trustee upon payment of all remaining funds to DHCS.

TENTATIVE RULING #13: ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).